

		¶¶37, 40 and 41) This describes a dispute about an event that took place in the past. Similarly, the request to have the court determine the prior transfer of the property from the two Spendthrift Trusts to the Falcon Trust is void describes a dispute about a past wrong. As Plaintiffs fail to allege an existing controversy, the motion is GRANTED as to the 3rd cause of action for Declaratory Relief, with 14 days leave to amend. 4th Cause of Action – Quiet Title The elements of a cause of action for quiet title are: (i) a description of the property including both its legal description and its street address or common designation; (ii) the plaintiff’s title and the basis upon which it is asserted; (iii) the adverse claims as against which a determination is sought; (iv) the date as of which a determination is sought and, if other than the date the complaint is filed, a statement why the determination is sought as of that date; and (v) a prayer for determination of plaintiff’s title against the adverse claims. (<i>Cal. Civ. Proc. Code § 761.020.</i>) “It has been held consistently that the owner of an equitable interest cannot maintain an action to quiet title against the owner of the legal title.” (<i>Stafford v. Ballinger</i> (1962) 199 Cal. App. 2d 289, 294–95; see also, <i>Lewis v. Superior Ct.</i> (1994) 30 Cal. App. 4th 1850, 1866.) Here, the FAC alleges: “Plaintiffs own an equitable interest in the property by virtue of the Verbal Promise and seek to quiet title against any and all adverse claims of Defendants and their various Trusts, which they improperly treated as their own personal individual assets.” (FAC ¶48) Because plaintiffs allege an equitable interest in the property, the quiet title action is insufficiently pled. Therefore the motion is GRANTED as to the 4th cause of action, with 14 days leave to amend. Defendants’ request for judicial notice is GRANTED, as to the existence of the documents. Plaintiffs’ request for monetary sanctions is DENIED. <i>Defendants shall give notice of this ruling.</i>
5.	Keno Capital, LLC v. Oakleaf Holding LLC 23-1313683	Cross-Defendants Keno Capital, LLC and Jeremey Jergensen’s (“CD” together) motion to strike the cross-complaint filed by defendants/cross-complainants Oakleaf Holding, LLC, Orchid Management LLC, and John L. Sorensen (“Defendants”) is GRANTED. Defendants filed their original answer to the original complaint in this matter on 05/02/23. They subsequently filed two more answers to the amended complaints on 02/27/26 and 03/23/26; the cross-complaint was not filed until 03/23/26, almost three years after the original answer. The original trial date in this action was set on 08/25/23. (ROA 30.)

		Pursuant to <i>Civ. Proc. Code § 428.50(b)</i> and <i>(c)</i>, once a trial date has been set, a party must first obtain leave from the court to file a cross-complaint. Defendants did not request or receive leave from the court prior to filing their cross-complaint. As such the motion is proper. The motion is GRANTED and the cross-complaint is ordered to be STICKEN. <i>Counsel for CD to give notice.</i>
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